FILED
Court of Appeals
Division III
State of Washington
8/4/2023 12:59 PM

No. 39615-1

COURT OF APPEALS, DIVISION III
OF THE STATE OF WASHINGTON

BRENDA ADAMS, et al,
Appellant, Plaintiff

v.

CONFLUENCE HEALTH,
Respondent, Defendant

REPLY BRIEF OF APPELLANT

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I. INTRODUCTION

Appellants/Plaintiffs (collectively "Appellants") health care workers brought employment tort law claims against their former employer Confluence Health (collectively "Respondent") for wrongful discharge in contravention of public policy and failure to accommodate disabilities for those dismissed employees claiming accommodations based on medical exemptions in violation of RCW 49.60.180. The trial court incorrectly granted summary dismissal of both causes of action, with prejudice.

II. RESPONDENT INCORRECTLY CLAIMS APPELLANTS FAILED TO ALLEGE THEY WERE ACTUALLY DISABLED

Appellants alleged two distinct categories of disabilities the Respondent failed Respondent's affirmative duty to reasonably accommodate.

One applied to all named Appellants, perceived disability for lack of COVID-19 immunity due to lack of COVID-19

vaccination. *See e.g., CP 250-258.* The Trial Court dismissed with prejudice this category and Appellants did not appeal.

The second category of employees had unique medical disabilities, above and beyond the now abandoned claim of "perceived disabilities." Not all of the Appellants had this second category of disability. Many who had this second category of disability did seek medical exemptions to the vaccination from the employer directly and the details of these sought exemptions are known to the employer via each specific employee's personnel file. It should be noted that the personnel files of some of the Appellants who had this second category of medical disability may not reflect the specifics of the accommodation sought because some of these Appellants viewed pursuing the medical accommodation futile at the time based on the communications from the employer, discussed more in Appellant's opening brief and herein.

Even so, it is this second category of employees who had unique disabilities, above and beyond the now abandoned claim

of "perceived disabilities," who's claims were omitted from the Trial Court's analysis that is being appealed.

The Second Amended Complaint states: "and/or" … "failure to accommodate their claims for accommodation based on medical or religious exemptions in violation of RCW 49.60.180. (Emphasis Added)" *See, e.g., CP 250-258; p* 255.

The Trial Court's letter decision denied the dismissal of the religious exemptions with prejudice, instead dismissing the religious exemption cause of action "without prejudice" stating the Second Amended Complaint "… in this Court's view does not give the Defendants fair notice regarding the nature of each Plaintiff's claim." CP 318-323; p 322.

Unlike the religious exemption which the Trial Court dismissed without prejudice, the Trial Court's letter decision failed to address the claims for accommodation based on medical exemptions, which appears that dismissal was inadvertent. (CP 318-323.) Even so, that cause of action was dismissed with prejudice by the Trial Court's Order, so we are appealing that

dismissal even though the Trial Court did not provide any analysis for that dismissal. (CP 318-323.)

Like the religious exemption cause of action, the Trial Court could have dismissed this second category of medical disability without prejudice to allow those Appellants an opportunity to provide more factual details applicable to each such Appellant. Instead, the Trial Court was silent on the matter in the Letter Decision, likely an inadvertent omission but one that cannot be ignored due to the language of the Order Granting Dismissal of All Claims, "… except for the failure to accommodate religious practices claim, which the Court orders dismissed without prejudice." CP 324-327; p 326, lls 12-13.

In addition to the Second Amended Complaints Appellants additional briefing to the Trial Court make clear that this second category of disability of Appellants was part of the claims being made in the notice pleading Complaints. For example, Appellants stated the following statements regarding the claims of physical disabilities:

1. "The real claim of these dismissed employees involves their fundamental right to control their personal health care choices … in some cases due to medical risks." CP 90-140; p 91, lls 1 and p 92, lls 1-4.
2. "… the employer here failed, as required by law, to determine, through the use of an interactive process, the nature and extent to which any of the dismissed employees could be appropriately accommodated." CP 90-140; p 108, lls 6-8.
3. "The Plaintiff's [sic] move for leave of court to amend their complaint to include and clarify their claim of failure to accommodate discrimination in violation of RCW 49.60.180, which prohibits discrimination based on religious and/or medical disability. The original and previously amended complaint arguably failed to state religious or medical disability discrimination. CP 90-140; p 207, lls 21-24. *(Emphasis added).*
4. "Justice does require the granting of this motion because the cause of action for failure to accommodate based on a claim of religious exemption and/or claim of medical exemption based on medical disability is clearly within the scope of the facts already established through the briefing of both parties for the currently pending 12(b))6) motion." CP 207-210; p 208, lls 18-22. *(Emphasis added).*

As discussed in much greater detail in Appellant's opening brief, it is clear that the employer was well aware of its affirmative duty to accommodate the workers it perceived to be disabled. (CP 90-140; p 107.)

That duty is clearly established in Washington case law. *Davis v. Microsoft*, 109 Wn. App. 884, 37 P.3d 333 (2002), aff'd, 149 Wn.2d 521, 70 P.3d 126 (2003). See also *Sommer v. DSHS*, 104 Wn. App. 160, 172-73 (Div, I, 2001). The duty includes the duty of taking "positive steps" to affirmatively assist a disabled worker, which may include helping the employee move to any existing vacancy. *Id*. The burden of proving undue hardship is on the employer. *Easley v. Sea-Land Sevv., Inc*., 99 Wn.App. 459, 464-467 (Div.I, 2000). Generally, whether an employer made a reasonable accommodation or whether the employee's request for such placed an undue burden on the employer are questions of fact for a jury. *Pulcino v. Federal Express*, 141 Wn. 2d 629, 644 (2000); *Phillips v. Seattle*, 111 Wn.2d 903, 910-11, 766 P.2d 1099 (1989).

Here, after determining that its policy was to remove all "unvaccinated" workers from the workplace, the employer provided the "unvaccinated" workers with an opportunity to submit requests for medical or religious exemptions in writing,

though Petitioners allege Respondent discouraged its in-house physicians from supporting request for medical exemptions. (CP 90-140; p 107.) Most of the dismissed employees submitted those requests. However, an employee's failure to request reasonable accommodation does not relieve the employer of its obligation to provide reasonable accommodation. *Kimbro v. Atlantic Richfield Co*., 889 F.2d 869, 877 (9th Circuit, 1989). Here, the employer failed to actually accommodate any of the dismissed employees.

Moreover, the employer here failed, as required by law, to determine, through the use of an interactive process, the nature and extent to which any of the dismissed employees could be appropriately accommodated. *See Goodman v. Boeing Co*.,127 Wn.2d 401, 408, 899 P,.2d 787 (1995).

When an employer fails to employ a process designed to find a reasonable accommodation before permanently firing a disabled employee that action severely undermines the purpose

of the WLAD to eliminate unlawful discrimination. *Davis*, supra, at 894.

III. RESPONDENT INCORRECTLY CLAIMS APPELLANT FAILED TO IDENTIFY A PUBLIC POLICY MANDATE THAT RISES TO THE LEVEL THAT CONSTITUTES "TRULY PUBLIC"

The Washington Supreme Court stated the following in its rendition of the history of the cause of action for discharge in violation of public policy in *Gardner v, Loomis Armored Inc.,* 128 Wn.2d 931, 913 P.2d 377 (1996), citing *Dicomes v. State*, 113 Wn.2d 612,617-18, 782 P.2d 1002 (Wash. 1989):

> Courts have found contravention of a clear mandate of public policy in four general areas: (1) where employees are fired for refusing to commit and illegal act; (2) where employees are fired for performing a public duty or obligation, such as serving jury duty; (3), such as where employees are fired for exercising a legal right or privilege, such as filing a workers' compensation claim; and (4) where employees are fired in retaliation for reporting employer misconduct, i.e., whistleblowing. (Emphasis added).

As the court further stated in *Dicomes,* at pages 617-18:

> The essence of the public policy exception is that an employee will have "a cause of action in tort for wrongful discharge if the discharge of the employee

> contravenes a clear mandate of public policy. (citation omitted).
>
> In determining whether a clear mandate of public policy is violated, courts should inquire whether the employer's conduct contravenes or scheme**...** the letter or purpose of a constitutional, statutory, or regulatory provision. (Emphasis added).

Since our Supreme Court first recognized the cause of action in question in *Thompson v. St. Regis Paper Co.* 102 Wn.2d 219, 685 P.2d 1081 (1984), it has been clear that the dismissed employee "must plead and prove that a stated public policy, either legislatively or judicially recognized, may have been contravened. **.....** [O]nce the employee has demonstrated that his discharge may have been motivated by reasons that contravene a clear mandate of public policy, the burden shifts to the employer to prove that the dismissal was for reasons other than those alleged by the employee." *Thompson,* pages 232-33.

Here the dismissed Confluence employees are claiming that they were either expressly or constructively discharged for exercising their legal right and privilege to make their own

decisions regarding whether to be vaccinated. (CP 1-8; 26-33.) They rely on a clear Washington legislative enactment, RCW 70.122.010, and on a constitutional provision, Article 1, section 7 of the Washington constitution, which have been held judicially by the Washington Supreme court to demonstrate the existence of a clear mandate of public policy supporting their right and privilege to make that decision for themselves.

Washington courts have historically utilized a four-part framework to guide the analysis of a claim of wrongful discharge in violation public policy. Court's examine (1) the existence of a "clear public policy" (clarity element), (2) whether "discouraging the conduct in which the employee engaged would jeopardize that the public policy (jeopardy element), (3) whether the public-policy-linked conduct caused the dismissal (causation element), and (4) whether the employer is "able to offer an overriding justification for the dismissal" (absence of justification element). *Gardner v. Loomis*, 128 Wn.2d at 941, 913 P.2d at 377. However, recent case law has refined that

analysis where the claim falls within one of the recognized categories of wrongful discharge set forth in *Dicomes*, cited above. See *Peiffer v. Pro-Cut Concrete Cutting and Breaking Inc.*, 6 Wn.App. 803, 829, 431 P.3d 1018 (Division 3, 2018), citing *Rose v. Anderson Hay and Grain Co.*, 184 Wn.2d. 268, 277-78, 287, 358 P.3d 1139 (2015). In such cases, the first element encompasses both the clarity and jeopardy elements. The new elements of the claim are then (1) that the employee's discharge may have been motivated by reasons that contravene a clear mandate of public policy, and (2) the public-policy-linked conduct was a significant factor in the decision to discharge the worker. *Peiffer, Id.* If those two elements are met, the employer must plead and prove the affirmative defense of overriding justification. *Id.*

The trial court's reasoning in dismissing the wrongful discharge in violation of public policy cause of action requires an on point public policy mandate specifically stating "the existence of a clear mandate of public policy restricting an

employer from removing an unvaccinated Health Care Provider from a Health Care Setting …" (CP 295-313, p. 304). The trial court's reasoning then finds that such a statement is not specifically made in the sources cited by the Plaintiffs in support of the public policy mandate: (1) RCW 70.122.010; (2) Article I, section 7; and (3) *McNabb v. Dep't of Corr.*, 163 Wn.2d 393,180 P.3d 1257 (2008). Therefore, there is no violation of public policy. *Id.*

The trial court's conclusion is too narrowly focused on what constitutes a contravention of "public policy" for purposes of the cause of action. The possible sources of the public policy are quite broad contrary to the trial court's analysis. The Washington Supreme Court stated in *Thompson*:

> In determining whether a clear mandate of public policy is violated, courts should inquire whether the employer's conduct contravenes the **letter or purpose** of a **constitutional**, **statutory**, or regulatory provision or scheme. Prior judicial decisions may also establish the relevant public policy. However, courts should proceed cautiously if called upon to declare public policy absent some prior legislative or judicial expression on the subject.

Thompson, 102 Wn.2d at 232, 685 P.2d 1081 (quoting *Parnar v. Americana Hotels, Inc.*, 65 Haw. 370, 380, 652 P.2d 625 (1982)(Emphasis added).

In *Dicomes,* the Washington Supreme Court stated:

> In general, it can be said that public policy concerns what is right and just and what affects the citizens of the State collectively … Although there is no precise line of demarcation dividing matters that are the subject of public policies from matters purely personal, a survey of cases in other States involving retaliatory discharges shows that a matter must strike at the heart of a citizen's social rights, duties and responsibilities before the tort will be allowed.

Dicomes, 113 Wn.2d at 617, 618 (Emphasis added).

Contrary to the trial court's analysis, it is not required to have a single statute or source of public policy for the cause of action.

As discussed in greater detail in Appellant's opening brief, in *Gardner,* the facts of that case did not fit neatly into any of the categories of cases previously considered by the Court. *Gardner v. Loomis Armored Inc*., 128 Wn.2d at 938, 913 P.2d at 380 (1996).

In *Gardner,* the majority stated:

> **Society** places the highest priority on the protection of human life. This **fundamental public policy is clearly evidenced** by countless statutes and judicial decisions.

Gardner, 128 Wn.2d at 944 (Emphasis added). In *Gardner,* there was not a statement of public policy directly on point, but the court looked at a number of statements of statues including statutes which express a clear public policy encouraging citizens to assist law enforcement in the effective apprehension and prosecution of criminals. *Gardner v. Loomis Armored Inc*., 128 Wn.2d 931, 939, 913 P.2d 377, 381 (1996). The Court also considered the public policy which encourages citizens to come to the aid of others in need of care such as the rescue doctrine, RCW 4.24.300 and language in case law.

"Whereas prior decisions have lumped the clarity and jeopardy elements together, analysis will be obtained by first asking if **any public policy** exists whatsoever, and then asking whether, on the facts of each particular case, the **employee's discharge contravenes or jeopardizes that public**

policy." *Gardner v. Loomis Armored Inc*., 128 Wn.2d at 941, 913 P.2d at 382 (Emphasis added).

"The jeopardy element guarantees an employer's personnel management decisions will not be challenged unless a public policy is genuinely threatened." *Gardner v. Loomis Armored Inc*., 128 Wn.2d at 941–42, 913 P.2d at 382.

"To establish jeopardy, plaintiffs must show they engaged in particular conduct, and the conduct *directly relates* to the public policy, or was *necessary* for the effective enforcement of the public policy." *Gardner v. Loomis Armored Inc*., 128 Wn.2d at 945, 913 P.2d at 384.

"If employers are allowed to terminate their employees for saving persons from life threatening situations when the employee appears to be the only hope of rescue, then the policy encouraging all citizens to engage in such conduct would be jeopardized." *Gardner v. Loomis Armored Inc*., 128 Wn.2d at 946, 913 P.2d at 385.

1. The Clarity Element.

The Washington legislature has declared as follows:

> The legislature finds that adult persons have the fundamental right to control the decisions relating to the rendering of their own health care, ... RCW 70.122.010.

As discussed in greater detail in Appellant's opening brief, that exact public policy was reiterated and judicially declared in *McNabb*, a case brought by an inmate of the Airway Heights Correctional Center. The inmate successfully asserted both a constitutional as well as a common law right to autonomously determine what is done with his body. He made that claim in the context of a situation where the state of Washington had failed to recognize his right to make, and had overridden, his decision to refuse artificial means of nutrition and hydration. McNabb relied on our state's guarantee of personal privacy in the Washington Constitution at Article I, Section 7 which states, "...no person shall be disturbed in his private affairs, or his home invaded, without authority of law."

The Supreme Court in *McNabb* acknowledged that "it is now commonplace to observe Const. Article I, §7 provides protections for the citizens of Washington which are qualitatively different from, and in some cases broader than, those provided by the Fourth Amendment." *McNabb* at page 400.

Ultimately, the court concluded that, as an inmate, McNabb's fundamental right to control his own health care decision regarding preservation of his life was outweighed by the factors supporting the State's interest in applying the Department of Correction's force-feeding policy to McNabb. In other word, the state's exercise of its police power was balanced against the inmate's fundamental right and the police power won the contest.

The foregoing compels the conclusion that there is a clear mandate of public policy in this state providing that each adult individual has a fundamental right to control the decisions relating their own health care. The dismissed employees in this case are not inmates under the control of the prison

system. Dismissed employees are not suing the state because the state never mandated their discharges.

The decision by Respondent to abrogate Petitioners fundamental right to make their own health care decisions by subjecting them to discharge was not made or compelled by any mandate or policy of the state of Washington, but rather was chosen and implemented by this private employer, Respondent Confluence Health.

Contrary to Respondent's assertions, Respondent was not required by the gubernatorial mandate to take the action of barring its exempt, but "unvaccinated," employees from working in its facilities. Respondent does not support its contrary position with any quote from the governor's proclamation or from the pronouncements of the state Department of Health, which provided a mandate to fire exempt employees who remained "unvaccinated."

The proclamation specifically allowed for employers to grant such exemptions for "religious" or "disability" and thus

allow employees to keep their jobs as part of the accommodation process. CP 90-140; pp 111-123. Respondent cites no recommendations from the Department of Health suggesting that such individuals be fired, or barred from direct patient care, as Respondent alleges.

Respondent knew it was not legally mandated to fire such individuals or to remove them from direct patient care by the Proclamation or by the Department of Health is clear from a written communication promulgated to the employers' own staff issued before the deadlines set in the Proclamation. (CP 124-128.) In that letter Respondent explained to all its employees that, even if they sought and were successful in being granted an exemption, they would be fired after a 12-week, unpaid, personal leave of absence per Confluence Health's leave policy. (CP 129-140; pp 138-139.) In its own question/answer sheet, the employer posed the following question: "I have heard that other organizations have a different process for accommodation, is that true?" The employer then answered, "Yes. There is a variability

of exemption and accommodation processes by hospitals and clinics in our region. Some are reportedly approving essentially all exemption requests and making accommodations. We do not believe this meets the intent or wording of the Governor's mandate".... (CP 90-140; p 94.) That well communicated position created for many employees an intolerable situation, discouraging some employees from even seeking exemptions and made it impossible for those who did to maintain their livelihoods at the employers' hospitals and clinics.

2. The Jeopardy and Causation Elements.

As clarified in *Peiffer*, supra, the jeopardy and causation elements, i.e. whether "discouraging the conduct in which the employee engaged would jeopardize that the public policy (the jeopardy element), and whether the public-policy-linked conduct caused the dismissal (the causation element) are combined in this cause due to the claim of the dismissed employees that their claim falls within one of the recognized categories of wrongful discharge, set forth in *Dicomes*, specifically their exercise of

their legal right and privilege to control their own health care choice. *See Peiffer*, supra at 829, citing *Rose v. Anderson*, 184 Wn.2d. at 277-78.

There is no doubt that in each case their public-policy-linked conduct caused their dismissals.

The court should be guided by the decision in *Martin v. Gonzaga Univ.,* 191 Wn.2d 712, 425 P.3d 837, 844 (2018). There our Supreme Court held that to prove causation in a public policy discharge case the employee need only adduce evidence that the public-policy-linked conduct was a substantial factor in the discharge decision.

3. The Absence of Justification Element.

As originally stated in *Thompson*, supra, "[o]nce the employee has demonstrated that his discharge may have been motivated by reasons that contravene a clear mandate of public policy, the burden shifts to the employer to prove that the dismissal was for reasons other than those alleged by the employee." *Thompson,* pages 232-33. It is clear that the

overriding justification posited by the employer must have motivated the discharge(s), not be some form of justification developed after the fact. See *Peiffer*, supra, at page 729-30. In this case, the employer cannot meet its burden of alleging and proving another reason for the discharges which does not implicate the public policy. Respondent's claim that it was compelled by state law to terminate the Petitioners is without merit. Therefore, Respondent cannot meet Respondent's burden of proof of overriding justification.

Respondent argues that its overriding justification was that forcing the dismissed employees to give up their fundamental right to control their own health care decision was generally in furtherance of public health and/or mandated by a gubernatorial decree.

Respondent offers no proof of either.

Respondent wants the court to relieve Respondent of their burden to prove overriding justification, which is legally Respondent's burden to meet, by claiming that the gubernatorial

mandate and/or the workplace safety of the so-called vaccinated workers and the patients in the workplace provided an overriding justification for refusing to honor the fundamental right of the dismissed employees as a matter of law. Respondent failed to meet Respondent's burden.

The burden of proving an overriding justification is on the defendant as an affirmative defense. See *Hubbard v. Spokane County*, 146 Wn.2d 699, 50 P.3d 602, 612 (2002)(citing *Gardner*; 128 Wn.2d at 941). Once raised, whether the employer had an overriding justification is a question of fact if evidence is adduced in support of both parties, as is the case here. *Id.* As discussed in Appellant's opening brief, the record contains much evidence to dispute the employer's claim that a gubernatorial mandate or public health or safety justified its dismissal of these employees, as well as to dispute their claim that it was independently justified from a public health perspective.

IV. ATTORNEYS' FEES AND EXPENSES.

Pursuant to RAP 18.1, Petitioners will request attorneys' fees and expenses including those in this appeal.

V. CONCLUSION

For the reasons discussed above, this Court should reverse the Superior Court decision granting summary dismissal and remand the case for discovery and trial.

I certify the number of words contained in this document is 3,847.

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August 04, 2023 - 12:59 PM

Transmittal Information

Filed with Court:	Court of Appeals Division III
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Appellate Court Case Title:	Brenda Adams, et al v. Confluence Health
Superior Court Case Number:	22-2-00104-3

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